IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH
COURT-IV

C.A. (CAA) NO. 55/ND/2025

Section 230-232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016

IN THE MATTER OF:

RAKUSHKA INTERNATIONAL PRIVATE LIMITED

...TRANSFEROR COMPANY NO. 1/APPLICANT COMPANY NO. 1

AND

SHAKA GARMENTS PRIVATE LIMITED

... TRANSFEROR COMPANY NO. 2/APPLICANT COMPANY NO. 2

AND

KALAMKARI DESIGNS PRIVATE LIMITED

...TRANSFEREE COMPANY/APPLICANT COMPANY NO. 3

Order Delivered on: 20.03.2026

CORAM:

SHRI MANNI SANKARIAH SHANMUGA SUNDARAM
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: Mr. Ashish Middha, Advocate

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. The captioned application is a first motion application jointly filed by the applicant companies viz., M/s Rakushka International Private Limited (hereinafter referred to as Transferor Company No. 1/Applicant Company No. 1) and M/s Shaka Garments Private Limited (hereinafter referred to as Transferor Company No. 2/Applicant Company No. 2) and M/s Kalamkari Designs Private Limited (hereinafter referred to as Transferee Company/Applicant Company No. 3) under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "Scheme").
2. Affidavit in support of the above application sworn by Mr. Suresh Chander Kumar on behalf of Applicant Company No. 1, 2 and 3 Authorized Signatory/Director, on behalf of Applicant Companies, is filed. It is also represented that the registered office of all the applicant companies is in the NCT of Delhi and hence within the territorial jurisdiction of this Tribunal.
3. As has been stated in the application, the Transferor Company No. 1/Applicant Company No. 1 i.e., M/s Rakushka International Private Limited was incorporated on 19th April 1983 with the name Rakushka

Medical Instruments Private Limited, which was changed on 11.07.2001, under the provisions of the Companies Act, 1956 bearing CIN: U74899DL1983PTC015579 having its registered office at B-36, Sagar Apartments, 6, Tilak Marg, Bengali Market Central Delhi, New Delhi, India-110001. The Authorized Share Capital of the Transferor Company No. 1/Applicant Company No. 1 is Rs. 1,00,00,000/- divided into 1,00,000 Equity shares of Rs. 100/- each. The Issued, Subscribed and Paid-up Share Capital is Rs. 1,00,00,000/- divided into 1,00,000 Equity Shares of Rs. 100/- each. The Transferor Company No. 1 is engaged in the business of medicines, pharmaceuticals, medical preparations, medical equipment, instruments, accessories, components, appliances, opthelimic and chemical products of all kinds.

4. The Transferor Company No. 2/Applicant Company No. 2 i.e., M/s Shaka Garments Private Limited was incorporated on 28th May 1976, under the provisions of the Companies Act, 1956 bearing CIN: U17111DL1976PTC434445 having its registered office at B-36, Sagar Apartments, 6, Tilak Marg, New Delhi, G.P.O., Central Delhi, New Delhi, India -110001. Its registered office was shifted from the State of West Bengal to Union Territory of Delhi on 22nd July 2024 and Fresh Certificate of Incorporation was issued. The Authorized Share Capital of the Transferor Company No. 2/Applicant Company No. 2 is Rs. 5,00,000/- divided into 5,000 Equity shares of Rs. 100/- each. The

Issued, Subscribed and Paid-up Capital of Transferor Company No. 2 is Rs. 1,70,000/- divided into 1,700 Equity Shares of Rs. 100/- each. The Transferor Company No. 2 is engaged in the business as traders, dealer, wholesalers, importers, exporters, combers, scourers, spinners, weavers, finishers, garment makers, designers, design block makers, dyers or producers of yarns and fabrics and also to manufacture, deal in, produce or process natural, synthetic or chemical substances.

5. The Transferee Company/Applicant Company No. 3 i.e., M/s Kalamkari Designs Private Limited was incorporated on 08th April 1976, under the provisions of the Companies Act, 1956 bearing CIN: U17111DL1976PTC431402 having its registered office at B-36, Sagar Apartments, 6, Tilak Marg, Janpath, Central Delhi, New Delhi, India - 110001. Company has shifted its registered office from the State of West Bengal to Union Territory of Delhi on 16th May 2024 and Fresh Certificate of Incorporation was issued. The Authorized Share Capital of the Transferee Company/Applicant Company No. 3 is Rs.4,00,00,000/- divided into 4,00,000 Equity shares of Rs. 100/- each. The Issued, Subscribed and Paid-up Capital of Transferee Company is Rs. 35,00,000/- divided into 35,000 Equity Shares of Rs. 100/- each as on 31st March 2024. After 31st March 2024, the Transferee Company increased its issued, subscribed and paid-up share capital by 78,500 equity shares so total paid up, subscribed and

issued share capital of the company is Rs. 1,13,50,000/- divided into 1,13,500 equity shares of Rs. 100 each. The Transferee Company is engaged in business of sale, import, export and store all "types of fabrics".

6. The Transferor Company No. 1 and 2 as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their Audited Financial Statement for the year ended 31.03.2024.
7. The Board of Directors of the Applicant Companies i.e., Transferor Company No. 1 and 2 and Transferee Company, have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of Board Resolution of the respective companies dated 02.11.2024 have been placed on record.
8. The appointed date as specified in the Scheme is 1st April, 2024, or such other date as the Hon'ble National Company Law Tribunal may direct.

9. RATIONALE OF THE SCHEME

i. The Board of Directors of the Transferor Companies and the Transferee Company, consider that the Scheme would benefit the respective companies and their respective stakeholders on account of the following reasons:

a) The proposed amalgamation would enable pooling of physical, financial and human resource of these Companies for the most beneficial utilization of these factors in the combined entity.

b) The Scheme of Amalgamation does not involve reorganization or restructure of capital nor do the same involve any compromise or reduction of capital. All companies are owned and controlled by the same family and group of persons and there are no outside interests of any third party in the companies.

c) The proposed Scheme would result in optimum utilization of the manpower of the concerned companies. It will open better avenues for the employees of the concerned companies. The employees will have a better choice of skill up gradation, development and career growth.

d) The proposed scheme of amalgamation will result in usual economies of a centralized and a large company including elimination of duplicate work, reduction in overheads, better and more productive utilization of human and other resource and enhancement of overall business efficiency. It will enable these companies to combine their managerial and operating strength, to build a wider capital and

financial base and to promote and secure overall growth of their businesses.

e) The said scheme of Amalgamation will contribute in fulfilling and furthering the objects of the Transferor and the Transferee Companies. It will strengthen, consolidate and facilitate further expansion and growth of their businesses. The resulting amalgamated company will be able to participate more vigorously and profitably in the competitive market scenario.

f) The proposed amalgamation would enhance the Shareholders value of the Transferor and Transferee Companies.

g) The main object of the amalgamation is to reduce filing of returns, to save money in filing and professional fee besides saving the reduction of prosecutions and hefty penalties under the Companies Act, 2013.

ii. The Scheme would, thus, have beneficial results for the Transferor Companies and the Transferee Company, their shareholders, and all concerned and will not be prejudicial to the interests of any concerned stakeholders

10. The applicant companies have annexed the certificate issued by the respective statutory auditors confirming that the accounting treatment in the Scheme is in compliance with the accounting standards prescribed by the Central Government under Section 133 of the Companies Act, 2013 by the respective companies.

11. With respect to Transferor Company No. 1, the captioned application discloses that:

    a) The Company has 2 (two) Equity Shareholders as on 30.09.2024. The list of equity shareholders as reflected in the financial statement of the company certified by the auditor and a separate list by the director of the company are annexed with the application. Consent affidavits of both shareholders are attached with the application.

    b) The Company has nil Secured Creditors as on 30.09.2024. Certificate from Chartered Accountants certifying the same is annexed with the application.

    c) The Company has nil Unsecured Creditors as on 30.09.2024. Certificate from Chartered Accountants certifying the same is annexed with the application.

    d) In relation to the Equity Shareholders, it seeks dispensing with convening/holding the meeting as consent from the shareholders is placed on record. Since there are no Secured or Unsecured

Creditors, therefore the necessity of convening and holding a meeting does not arise.

12. With respect to Transferor Company No. 2, the captioned application discloses that:

a) It has 5 (Five) Equity Shareholders as on 31.03.2024. The list of equity shareholders as reflected in the financial statement of the company certified by the auditor and a separate list by the director of the company are annexed with the application. The respective consent by way of affidavit by all equity shareholders is also annexed with the application.

b) The Company has nil Secured Creditor as on 30.10.2024. Certificate from Chartered Accountants certifying the same is annexed with the application.

c) The Company has nil Unsecured Creditor as on 30.10.2024. Certificate from Chartered Accountants certifying the same is annexed with the application.

d) In relation to the Equity Shareholders, it seeks dispensing with convening/holding the meeting as consent from the all shareholders is placed on record. Since there are no Secured or Unsecured Creditors, therefore the necessity of convening and holding a meeting does not arise.

13. Regarding the Transferee Company, the applicants have averred that:

a) The Company has 4 (Four) Equity Shareholders as on 31.03.2024. The list of equity shareholders as reflected in the financial statement of the company certified by the auditor is annexed with the application. The respective consent by way of affidavit is also annexed with the application.

b) The Company has 1 (One) Secured Creditor as on 30.09.2024. Certificate by Chartered Accountants certifying the same is annexed with the application. The Consent by affidavit of the Secured Creditor is also attached with the application.

c) The Company has 1 (One) Unsecured Creditors as on 30.09.2024. Certificate from Chartered Accountants certifying the same is annexed. The Consent by affidavit of the Unsecured Creditor is also attached with the application.

d) In relation to the Equity Shareholders, Secured and Unsecured Creditors it seeks dispensing with convening/holding the meetings as respective consent by way of affidavit is placed on record.

14. The applicant companies have annexed an affidavit u/s 230(2) of Companies Act, 2013 affirming that no proceeding for inspection, inquiry or investigation under the provisions of the Companies Act, 2013, or under any other law is pending against any of the Applicant Companies.

15. In the wake of the averments made in the application and the documents filed therewith, the following directions are issued qua convening/holding or dispensing with the meetings of the Equity Shareholders, Secured and Unsecured Creditors.

A. In relation to the Transferor Company No. 1/Applicant Company No. 1:

a) With respect to Equity Shareholders: In view of consent affidavits by both the Equity Shareholders, convening/holding the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: Since there are no Unsecured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

B. In relation to the Transferor Company No. 2/Applicant Company No. 2:

a) With respect to Equity Shareholder: In view of consent affidavits from all the Equity Shareholders,

convening/holding the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: Since there are no Unsecured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

C. In relation to the Transferee Company/Applicant Company No. 3:

a) With respect to Equity Shareholder: In view of consent affidavits from the all Equity Shareholders, convening/holding of the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: In view of consent affidavit from the sole Secured Creditor, convening/holding of the meeting of Secured Creditor is dispensed with.

c) With respect to Unsecured Creditors: In view of consent affidavit from the sole Unsecured Creditor, convening/holding of the meeting of Unsecured Creditors is dispensed with.

16. The Application i.e., **C.A. (CAA) No. 55 of 2025 stands allowed** on the aforesaid terms and accordingly disposed of.

Sd/-	**Sd/-**
(ATUL CHATURVEDI)	**(MANNI SANKARIAH SHANMUGA SUNDARAM)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**